

The Citizenship

1. Indian citizenship cannot be obtained by –

- (a) Birth
- (b) Naturalization
- (c) Absorbing any part of land
- (d) Depositing money in Indian Banks

41st B.P.S.C. (Pre) 1996

Ans. (d)

According to Indian Citizenship Act 1955 (as amended), the citizenship may be acquired on the basis of- (1) By Birth (2) Descent (3) Registration (4) Naturalization (5) Incorporation of Territory. Depositing Money in Indian banks is a commercial action, not a basis to acquire citizenship as per the Constitution.

2. When was the Citizenship (Amendment) Act passed?

- (a) 11th December, 2018 (b) 11th December, 2019
- (c) 11th October, 2019 (d) 11th October, 2020
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (b)

On 11th December 2019, Rajya Sabha passed the contentious Citizenship (Amendment) Bill 2019, with 125 votes in favor and 99 against. The Bill was passed by the Lok Sabha on 9th December 2019. The Act amends the Citizenship Act, 1955 and for the first time, will grant citizenship based on religion to non-muslim communities from Afghanistan, Bangladesh and Pakistan who entered India on or before December 31, 2014.

Fundamental Rights

1. The phrase 'equality before law' used in Article 14 of the Indian Constitution has been borrowed from the Constitution of

- (a) France (b) Britain
- (c) USA (d) More than one of the above
- (e) None of the above

68th B.P.S.C. (Pre) 2022

Ans. (b)

Article 14 of the Indian Constitution says—The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India Prohibition of discrimination on grounds of religion, race, caste, sex or place of birth. This provision confers rights on all persons whether citizens or foreigners. It is notable that the concept

of 'equality before law' is of British origin while the concept of 'equal protection of Laws' has been borrowed from the Constitution of United States of America.

2. From which country, the Indian Constitution has taken reference for the idea of the Fundamental Rights?

- (a) Ireland (b) United States of America
- (c) United Kingdom (d) Canada

69th B.P.S.C. (Pre) 2023

Ans. (b)

The framers of the Constitution took inspiration for a number of its aspects from other international constitutions. The United States Constitution serves as the paradigm for India's Fundamental Rights. The essential rights that everyone is entitled to in order to live with honor and integrity are known as fundamental rights. The Indian Constitution's Third Part contains these.

The judiciary has the upper hand in interpreting the Constitution thanks to this provision. Thus, if an order issued by the legislature or the executive branch of government conflicts with the nation's Constitution, the court has the authority to overturn it.

3. Which of the following is given the power to enforce the Fundamental Rights by the Constitution?

- (a) All Courts in India
- (b) The Parliament
- (c) The President
- (d) The Supreme Court and High Courts

47th B.P.S.C. (Pre) 2005

Ans. (d)

Article 13 of the Constitution grants power of Judicial Review to the Supreme Court, and High Courts in the case of violation of the Fundamental Rights. The Supreme Court (Art.32) and High Court (Art.226) in exercising their power may declare any law or enactment passed by the Legislature, void or unconstitutional, on the ground of contravention to the Fundamental Rights.

4. What is meant by 'Rule of Law'?

- (a) One act for all and one judiciary for all
- (b) One act for all and one State for all
- (c) One State for all and one judiciary for all
- (d) All acts for one and one judiciary for all
- (e) None of the above / More than one of the above

66th B.P.S.C. (Pre) 2020

Ans. (a)